

2023 P L C (C.S.) 444

[Lahore High Court (Rawalpindi Bench)]

Before Jawad Hassan, J

MUHAMMAD YUNAS

Versus

PROVINCE OF THE PUNJAB and others

Writ Petition No.463 of 2022, decided on 19th September, 2022.

Punjab Civil Servants Act (VIII of 1974)---

---S.12---Retirement from service---Amendment in law---Retrospective effect---Scope---Petitioner assailed order passed by respondent whereby his retirement order was recalled with the direction to rejoin his official duty in terms of amendment made in S.12 of the Punjab Civil Servants Act, 1974, through the Punjab Civil Servants (Amendment) Act, 2021---Validity---Retirement order of the petitioner had been issued prior to promulgation of the Punjab Civil Servants (Amendment) Act, 2021---Punjab Civil Servants (Amendment) Act, 2021, did not apply retrospectively to the case of the petitioner---When the Legislature through an enactment altered the rights of parties by taking away or conferring any right of action, such amendment did not affect pending actions, unless provided in express terms within the enactment---General rule of common law was that the statute changing the law ought not to affect past events, unless the intention appeared with reasonable certainty to be understood as applying to facts or events that had already occurred in such a way so as to confer or impose or otherwise effect rights or liabilities which the law had defined with reference to the past events---Constitutional petition was allowed and the impugned order was set aside.

Muhammad Faheem Zafar v. Government of the Punjab and 3 others 2022 PLC (C.S.) 1156 rel.

Muhammad Mansha v. Industrial Development Bank of Pakistan and others 2020 SCMR 1069 foll.

Malik Latif Khokhar for Petitioner.

Mirza Asif Abbas, Assistant Advocate General for Respondents.

ORDER

JAWAD HASSAN, J.---This Constitutional Petition under Article 199 of the Islamic Republic of Pakistan, 1973 (the "Constitution") has been filed by the Petitioner impugning the order dated 22.01.2022, passed by Respondent No.3, whereby his retirement order was recalled with the direction to rejoin his official duty in terms of the Amendment made in Section 12 of the Punjab

Civil Servants Act, 1974 (Act VIII of 1974) in pursuance of Notification No. Legis:13-20/2002(P-I) dated 03.05.2021 (hereinafter to be called 'the Amendment Ordinance') later given shape of The Punjab Civil Servants (Amendment) Act, 2021 promulgated and enforced in the Punjab Gazette Notification dated 29.10.2021.

2. Brief facts giving rise to this Petition are that the Petitioner having been appointed as Record Lifter (BPS-2) in the year 1995 was gradually promoted to BPS-9 on 12.10.2013. On completion of 25-years qualifying service for pension, due to his health problem, he applied for retirement which was allowed vide Endorsement No.788/C.22, dated 22.06.2020 to avail LPR with effect from 01.07.2020 to 30.06.2021 and he had to retire on 01.07.2021. Consequently he received all the retirement benefits and also started to receive Pension. On 22.01.2022, the Petitioner was directed to rejoin his duty in view of above Amendment Ordinance.

3. Hence this Petition.

4. It is contended by the teamed counsel for the Petitioner that Petitioner on account of his health problems was unable to continue his service, therefore, he opted to proceed on retirement; that Section 20 of the Amendment Ordinance is not applicable to his case, as it empowers a competent authority to recall, rescind or modify an illegal order, earlier passed by itself, whereas, the order passed by Respondent No.3 is a lawful order because when the retirement order dated 22.06.2020 was issued then the Amended Ordinance was not in field; that Section 3.5 of the Punjab Civil Services Pension Rules are applicable in Petitioner's case which is still intact; that the Petitioner has been summoned through the impugned order and even has not been given an opportunity of hearing, which is not only sheer violation of Article 10-A of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") but also amounts to compel the Petitioner for doing forced labour forbidden under Article 11 of the Constitution; that the Amendment Ordinance is unlawful inasmuch as it cannot be operated retrospectively; that the Petitioner had invested the amount of gratuity in a small business hence, it would be very difficult for him to refund the same. Lastly, prays for setting aside of impugned order dated 22.01.2022.

5. The learned Law Officer though negates the grounds taken by the Petitioner, yet concedes that retirement order of the Petitioner had been issued on 22.06.2020, well before promulgation of the aforesaid Amendment Ordinance. However, adds that through letter dated 03.01.2022, the Finance Department, Government of the Punjab has clarified that all retirement orders issued before the date of coming into force of the Amended Section 12 of the Act, in derogation to the mandatory conditions of voluntary retirement stipulated therein are unlawful and, as such, cannot be given effect. In order to cure the illegality, it has been recommended that such officers/officials shall have to rejoin their Administrative Departments in the light of Section 20 of the Punjab General Clauses Act, 1956. Adds that the intervening period shall be treated as leave of kind due. The provisions of the Act are to be read in conjunction with each other and cannot be taken in isolation. Hence, qualifying service of 25-years or attaining 55 years of age, whichever is later, is prerequisite for voluntary retirement.

6. Heard. Record perused.

7. The moot point in this case is, whether the Amendment Ordinance can be given retrospective effect? There is no denial that Petitioner's retirement order was issued on 22.06.2020 while the Government of the Punjab issued Notification No Legs:13-20/2002 (P-1) dated 03.05.2021 whereby Punjab Civil Servants (Amendment) Ordinance, 2021 was promulgated though the same had been extended from time to time till attaining its finality/maturity as an Act after approval by the Punjab Provincial Assembly. The Amendment Ordinance reads as under:-

In the Punjab Civil Servants Act, 1974 (VIII of 1974) in Section 12, in subsection (i) for clause (ii) the following shall be substituted:

(ii) where no direction is given under clause (i):

a) On completion of sixtieth year of his age;

b) Voluntarily on completion of twenty-five years of service or on attaining fifty-five years of age, whichever is later.

8. Hon'ble Supreme Court of Pakistan in Muhammad Mansha v. Industrial Development Bank of Pakistan and others (2020 SCMR 1069) has already elaborated the scope of retrospective effect by holding that "when the legislature through an enactment altered the rights of parties by taking away or conferring any right of action, such enactment did not affect pending actions, unless provided in express terms within the enactment. General rule of common law was that the statute changing the law ought not (to affect past events), unless the intention appeared with reasonable certainty to be understood as applying to facts or events that had already occurred in such a way so as to confer or impose or otherwise effect rights or liabilities which the law had defined with references to past events". Moreover, in similar circumstances, this Court has established the retrospective effect of the impugned Amendment Ordinance in a case titled Muhammad Faheem Zafar v. Government of the Punjab and 3 others (2022 PLC (C.S.) 1156) by observing that:

" when the retirement order is lawfully sanctioned and issued by the competent authority it becomes final and conclusive for all practical purposes subject to availing of LPR, if admissible. It means that the civil servant stood retired on the date of retirement order which would take effect after the completion of his duly sanctioned LPR. The retirement, as such, becomes final and merely the retiring pension would start from the date mentioned in the retirement order after the availing of LPR. As such, the retirement must be reckoned and given effect from the date of retirement order in accordance with prevailing law on that date. Hence, the Amended Section 12 of the Act does not apply retrospectively to the case of the Petitioner since the retirement order of the Petitioner was issued prior to the date of promulgation of the Amended Section 12 of the Act".

9. In view of the above, it is clear that Retirement Order of the Petitioner has been issued on 22.06.2020 prior to promulgation of the Amendment Ordinance, therefore, this Writ Petition is allowed and the impugned order passed by respondent No.3 is set aside.

SA/M-209/L Petition allowed.